

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No. _____

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MONTEL VARGAS,

Date Filed: _____

Plaintiff,

SUMMONS

-against-

Pursuant to CPLR 504(3),
Plaintiff designates New
York County as venue based
upon where the cause of
action arose.

THE CITY OF NEW YORK, MATTHEW
BUONASPINA, and JOHN DOEs #1-2, being the fictitious
names of New York City Police Department officers whose
names are unknown to Plaintiff,

Defendants.

-----X

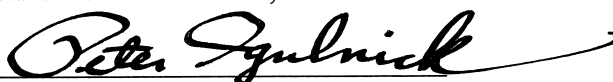
TO THE ABOVE-NAMED DEFENDANTS:

You are hereby summoned and required to serve upon Plaintiff's attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, or within thirty days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Manhasset, New York
April 27, 2024

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 
Peter M. Agulnick

Attorney for Plaintiff

MONTEL VARGAS

1129 Northern Boulevard, Suite 404
Manhasset, New York 11030-3022
(212) 571-2266
(Our File # 559-001)

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
C/O Georgia M. Pestana, Esq.
New York City Law Department
100 Church Street
New York, New York 10007

MATTHEW BUONASPINA
C/O New York City Police Department
1 Police Plaza
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No. _____
MONTEL VARGAS,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, MATTHEW
BUONASPINA, and JOHN DOES #1-2, being the fictitious
names of New York City Police Department officers whose
names are unknown to Plaintiff,

Defendants.

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Plaintiff Montel Vargas, through his counsel, for his complaint, states the following
upon information and belief:

PARTIES

1. Plaintiff MONTEL VARGAS is an individual who resides in New York
County, New York State

2. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a
municipal corporation organized under the laws of the State of New York, in and as the
City of New York.

3. Defendant MATTHEW BUONASPINA (hereinafter "BUONASPINA") is
an individual whose residence is unknown to Plaintiff and who is a New York City Police
Department detective.

4. Defendant JOHN DOES # 1 - 2 are New York City Police Department
officers/detectives whose names and addresses are presently unknown to Plaintiff.

5. The individual Defendants (that is, the individual police officers) are being

sued both in their individual capacity and in their official capacity as police officers employed by Defendant CITY.

6. Plaintiff has served a notice of claim(s) upon Defendant CITY.

7. The adjustment or payment has been neglected or refused since the filing of the Notice of Claim(s)

FACTS

8. On February 20, 2023, at about 3:00 P.M., Plaintiff was lawfully at the New York City Police Department's 10th Precinct located at 230 West 20th Street, New York, NY 10011.

9. On February 20, 2023, Defendant BUONASPINA (Shield # 3645) and JOHN DOES # 1 - 2 were New York City Police Department officers (all collectively will be hereinafter referred to as "Defendant Police Officers.")

10. On February 20, 2023, while Plaintiff, who is black, was arrested for no reason by Defendant Police Officers.

11. A reasonable person or police officer should have known that Plaintiff had committed no crime, violation, or infraction.

12. Defendant Police Officers had no warrant to arrest Plaintiff.

13. Defendant Police Officers otherwise had no other lawful reasons to arrest Plaintiff.

14. Notwithstanding, Defendant Police Officers arrested and handcuffed Plaintiff.

15. Before being handcuffed, Plaintiff attempted to inform Defendant Police

Officers that he had committed no crime and did not want to be handcuffed and go to jail, but Plaintiff went peacefully and submitted without resistance to the false arrest.

16. Upon arrival at the jail, the police subjected Plaintiff to a humiliating search and confiscated all his money and personal belongings.

17. Plaintiff was subjected to an embarrassing strip searched.

18. Plaintiff was then incarcerated in a cell with criminals.

19. Eventually, Plaintiff was released from jail after about 25 hours in custody.

20. After being released from jail, a criminal proceeding was brought against Plaintiff titled People of the State of New York v. Montel Vargas in the Criminal Court of the City of New York and/or the Supreme Court, New York County, under docket number 72073-23/001.

21. As a result of this criminal complaint, Plaintiff had to appear publicly as a criminal defendant in court many times.

22. Because the charges in the criminal proceeding had no merit, all charges against Plaintiff (who was a criminal defendant at the time) were dismissed before the case ever went to trial.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

23. Plaintiff repeats and re-alleges every allegation in this complaint.

24. Defendant Police Officers intended to confine and completely confined Plaintiff.

25. Plaintiff was cognizant of the confinement.

26. Plaintiff voiced objections to the confinement to which he did not consent.

27. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff in any way.

28. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiff and in violating Plaintiff's rights and discriminating against him and profiling him because of his race.

29. Defendant Police Officers violated Plaintiff's civil liberties and rights under the United States Constitution, including, but not limited to, the Bill of Rights, the Fourth Amendment, the Sixth Amendment, and the Fourteenth Amendment.

30. Pursuant to 42 U.S.C. § 1983, Plaintiff is entitled to damages from Defendant Police Officers for violating Plaintiff's constitutionally protected civil rights.

31. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has the policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

32. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiff, based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiff and in falsely arresting Plaintiff and others in the future.

33. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiff is also entitled to damages from Defendant CITY for violations of Plaintiff's constitutionally protected civil

rights.

34. Finally, all Defendants are liable for paying Plaintiff an award of counsel fees in an amount to be determined by this Court, pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

35. Plaintiff repeats and re-alleges every allegation in this complaint.

36. Defendant Police Officers intended to confine and completely confined Plaintiff.

37. Plaintiff was cognizant of the confinement.

38. Plaintiff voiced objections to the confinement to which he did not consent.

39. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff.

40. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiff.

41. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiff.

42. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiff.

THIRD CAUSE OF ACTION

(Battery)

43. Plaintiff repeats and re-alleges every allegation in this complaint.

44. Defendant Police Officers' acts were intentional.

45. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with Plaintiff, amounting to the civil tort of battery.

46. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiff.

47. Defendant CITY, therefore, is vicariously liable for the battery that Defendant police officers inflicted upon Plaintiff.

48. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION

(Negligence)

49. Plaintiff repeats and re-alleges every allegation in this complaint.

50. Defendant Police Officers had a duty to protect and not arrest citizens who do not commit crimes.

51. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiff.

52. The actions of Defendant Police Officers caused Plaintiff to suffer damages.

53. Consequently, Defendant Police Officers are liable for negligence.

54. Defendant Police Officers acted within the scope of their duties as police officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiff.

55. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

56. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION**(Negligent Hiring and Retention)**

57. Plaintiff repeats and re-alleges every allegation in this complaint.
58. Defendant CITY had a duty to hire and retain competent police officers.
59. Defendant CITY knew or should have known that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.
60. Defendant CITY breached its duty to hire and retain competent police officers.
61. Due to the CITY's breach, Plaintiff suffered damages.
62. Thus, Defendant CITY is liable for the negligent hiring and retention of Defendant police officers.

SIXTH CAUSE OF ACTION**(Malicious Prosecution)**

63. Plaintiff repeats and re-alleges every allegation in this complaint.
64. Defendants brought a prior criminal proceeding against Plaintiff.
65. On April 23, 2024, the prior criminal proceedings terminated in favor of Plaintiff (where Plaintiff was named a criminal defendant).
66. Defendant Police Officers lacked probable cause to handcuff, arrest, imprison, and prosecute Plaintiff.

67. Defendant Police Officers had malice in prosecuting Plaintiff in the prior criminal proceedings.

68. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as New York City Police Department officers.

69. Thus, all Defendants are liable for malicious prosecution.

WHEREFORE, Plaintiff demands judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$2 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$2 million against Defendant CITY;
- (f) on the Sixth Cause of Action (malicious prosecution), actual and punitive damages in the amount of \$2 million; and

(g) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Manhasset, New York
April 27, 2024

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 
Peter M. Agulnick

Attorney for Plaintiff

MONTEL VARGAS

1129 Northern Boulevard, Suite 404

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2, being the fictitious names of New York City Police
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Defendants.

SUMMONS and COMPLAINT

PETER M. AGULNICK, P.C.

Attorney for Plaintiff MONTEL VARGAS

1129 NORTHERN BOULEVARD, SUITE 404

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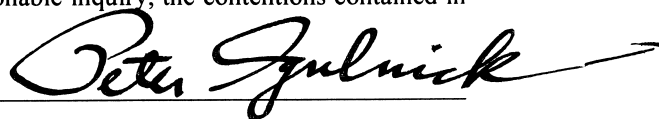
FAX (212) 656-1645

This office does not accept service of litigation papers by electronic means except for cases designated as "E-file" cases. In those instances, this office still does not consent to fax service.

Pursuant to 22 NYCRR § 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: April 27, 2024

Signature: _____



Name: _____

Peter M. Agulnick
